In continuum with this, in 1989, another suit filed in Supreme Court with regard to allotment of separate reservation for Scheduled tribe (ST) community. In this case, Supreme Court of India delivered the verdict by which, backward community, most backward, scheduled caste and scheduled tribes received 30%, 20%, 18% and 1% respectively. The entire reservation was changed combinedly and 69% came into effect in Tamilnadu.

Reservation in Central Government: Mandal Commission

The central government under the Prime Ministership of V.P.Singh consented with the recommendations of Mandal Commission. The Government issued an order which confirmed 27% reservation for Backward Community in Central Government Services.



In opposing this order, Indira Sawhney, filed a suit stating the order breaches the constitutional provisions. She also added that reservation policy overrides the principle "All are equal before Law". Supreme Court delivered a clear verdict that 27% for backward community in Central government services can be legalized. Further it states, "the reservation should not reach beyond 50%".

The Supreme court of India fixed 50% as ceiling for reservation policy, whereas it was not mentioned in the constitution. Moreover, the highest ceiling of 50% can also be discharged.

Thus the Judgment says

"Although 50% is the ceiling fixed for the reservation in central government services, it may be changed, taking into account the diversified communities and abnormal situations of this nation".

"People who are distant, those who could not mingle with the mainstream society or without opportunity, unique in culture may be exempted from this ceiling fixed by the Supreme Court. 50% of the ceiling may be exempted, said the same judges who delivered the famous verdict in this sensitive case.

That said, a member of consumer trust, K.N. Vijayan from Tamilnadu filed a suit stating, 69% reservation in Tamilnadu is given against the Supreme Court Verdict. Supreme Court, however, in its Verdict mentioned that Engineering and Medical Colleges should not be provided reservation more than 50%. It also issued Interim prohibition for the reservation.

It was similar with the untoward happenings during 1951, which prompted



the state government under J.Jayalalitha who passed a bill in the state assembly by citing the reference from directive principles of state policy (Article 31(c)).

The bill on 30.12.1993 was given consent by the President of India on 19.07.1994 by which 69% reservation received fullest legal protection. To avert further filing of suit against Tamilnadu

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